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Committee on National Security Systems

CNSS Advisory Memorandum
TEMPEST/01-16
February 2017



MAINTENANCE AND DISPOSITION OF TEMPEST EQUIPMENT

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National Manager

FOREWORD

1. The Committee on National Security Systems (CNSS) is issuing this Advisory Memorandum to inform agencies of updated National Security Agency (NSA) guidance for the maintenance and disposition of TEMPEST equipment. It is applicable to all departments and agencies of the U.S. Government that use, maintain, or make disposition of TEMPEST equipment to protect National Security Systems (NSS).
2. This Advisory Memorandum supersedes NSTISSAM/TEMPEST 1-00, *Maintenance and Disposition of TEMPEST Equipment*, dated December 2000, and will be made available to all appropriately cleared U.S. Government personnel responsible for maintenance and final disposition of TEMPEST equipment.
3. This advisory is available from the CNSS Secretariat, as noted below, or the CNSS website: <http://www.cnss.gov>.

FOR THE NATIONAL MANAGER

/s/

SCOTT A. STEPHENSON
Acting Deputy National Manager

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ADVISORY MEMORANDUM
MAINTENANCE AND DISPOSITION OF TEMPEST EQUIPMENT

SECTION I - PURPOSE

1. This Advisory Memorandum provides guidelines for the maintenance and disposition of TEMPEST equipment. Such equipment may contain specialized suppression circuitry that must be maintained by knowledgeable persons to ensure proper TEMPEST performance throughout its life cycle.

2. The suppression technology used in such equipment must be protected from general distribution. Therefore, disposition of TEMPEST equipment should be controlled to prevent technology transfer. This document will be made available to U.S. Government personnel who are responsible for maintenance and disposition of TEMPEST equipment.

SECTION II - AUTHORITY

3. The authority to issue this Advisory Memorandum derives from National Security Directive 42, *National Policy for the Security of National Security Telecommunications and Information Systems* (Reference a) which outlines the roles and responsibilities for securing NSS, consistent with applicable law, Executive Order 12333 (Reference b), as amended, and other Presidential directives.

4. Nothing in this Advisory Memorandum should be interpreted as altering or superseding the authorities of the Director of National Intelligence.

SECTION III - SCOPE

5. This Advisory Memorandum is applicable to all USG departments and agencies. The provisions of this policy apply to TEMPEST equipment used to secure national security systems and are applicable to U. S. government operations worldwide.

SECTION IV - POLICY

6. It is the policy of the U.S. Government that Federal departments and agencies and their designated agents apply TEMPEST countermeasures in proportion to the threat of exploitation. In order to ensure the continuous application of TEMPEST countermeasures, maintenance and disposition procedures should be implemented for TEMPEST equipment.

7. Currently, the government has in place the TEMPEST Certification program (TCP) that establishes guidelines for vendors to manufacture, produce, and maintain their TEMPEST equipment. The vendor must provide adequate maintenance and life cycle support for its customers to ensure the continued TEMPEST integrity of the product. This support is detailed in the TSRD No. 88-9E, dated August 2014. Copies of this document may be obtained from the National Security Agency Corporate Customer/Business Relations Office. However, to ensure the continued protection of TEMPEST equipment and to control technology transfer, only citizens of the Five Eyes (FVEY) and NATO countries may perform maintenance on TEMPEST equipment. Clearances for maintenance personnel will

be based on the requirements of the supported environment.

SECTION V - DISPOSITION PROCEDURES

8. If TEMPEST equipment is to be disposed of in lieu of reuse, the following procedures should be followed:

a. Remove any non-volatile memory from the TEMPEST equipment and dispose in accordance with the local cyber security requirements or in accordance with CNSSI 4004.1, *Destruction and Emergency Protection Procedures for COMSEC and Classified Material*, if classified.

b. Maintain a log of the model and serial number of all equipment disposed/destroyed (e.g., central processing units, monitors, printers, keyboards, etc.).

c. Provide equipment to other USG agencies or countries specified by REL such as entities of FVEY or NATO countries.

d. Destruction of TEMPEST equipment is recommended if transfer to another USG department or agency is impractical.

(1) Serial numbers and any classified markings will be removed from the equipment.

(2) The equipment will be broken into pieces of such a nature as to preclude restoration. Such destruction will be witnessed by an individual cleared to the level of information that the equipment was used to process. The destruction of this equipment can cause safety and HAZMAT issues. The intent is to disguise the TEMPEST critical features that are employed. That is possible by removing any filter, gasket, ferrite, shielded cabling, shielded windows, waveguides, conductive tape, etc. and disposing of these materials separately, in accordance with instructions provided by the cognizant security office.

(3) A destruction certificate will be prepared and signed by the witnessing individual. The certificate will include a statement from the witness that all non-volatile memory was removed prior to destruction.

(4) All residue will be returned as scrap metal to the Defense Reutilization Management Office, utilizing DD Form 1348-I or an Optional Form 132. A copy of the log required by paragraph 8.b. and the destruction certificate should be provided to the cognizant security office.

(5) Copies of all documents will be forwarded to the local property Custodian so the items can be removed from the originator's property records.

SECTION VI - RESPONSIBILITIES

9. Departments and agencies should follow these guidelines for the development of a maintenance and disposition program:

- a. Consider the additional cost of the program for life cycle maintenance and disposition.
- b. Ensure that data resident on the equipment is not compromised during the maintenance/disposition process.
- c. Keep a log of maintenance action for all TEMPEST equipment to include date of maintenance, action taken, technician name, and equipment model and serial number.
- d. Test and recertify the equipment as deemed necessary by the department or agency.
- e. Disposition/resale should be consistent with the established export control/technology transfer policy. Questions regarding export policy should be directed to the National Security Agency INFOSEC International Relations Office. Lateral transfers to other U.S. Government departments/agencies, or return to stock when deemed necessary, is highly recommended.

SECTION VII - DEFINITIONS

10. For the purpose of this document, the following definition applies:
TEMPEST equipment is defined as equipment that complies with either Level I or II of NSTISSAM TEMPEST/1-92 as certified by a National Security Agency's Certified TEMPEST Manufacturer. All other terms used in this issuance are defined in CNSSI 4009, *Committee on National Security Systems (CNSS) Glossary* (Reference e).

SECTION VIII - REFERENCES

11. References for this Advisory Memorandum are listed in Annex A. Future updates to referenced documents shall be considered applicable to this Advisory Memorandum.

Enclosures:
ANNEX A – References

ANNEX A

REFERENCES

- a. National Security Directive 42, *National Policy for the Security of National Security Telecommunications and Information Systems*, dated 5 July 1990.
- b. Executive Order (E.O.) 12333, *United States Intelligence Activities*, dated 4 December 1981 (as amended by EOs 13284 (2003), 13355 (2004), and 13470 (2008)).
- c. National Security Agency Directive IASRD-001-2016, *Information Assurance Security Requirements*, dated July 2016.
- d. NSTISSAM TEMPEST/1-92 *COMPROMISING EMANATIONS LABORATORY TEST REQUIREMENTS, ELECTROMAGNETICS*, dated 15 December 1992.
- e. CNSSI 4009, *CNSS Glossary*, dated 6 April 2015.